

THE UNIVERSAL HOUSE OF JUSTICE

2000-02-23

To an individual believer dear bahá'í friend

1 ary 2000 and appreciates your suggestion for a procedure to be followed when bahá'í
laws are applied. you provide a very interesting perspective and

2 the house of justice has asked us to send you the following comments.

The way in which the house of justice currently takes such actions is

3 largely dictated by the nature of the law in each case and on the condition of the
bahá'í community at the time. The method adopted may not be suitable

4 for publication in a special legal bulletin or for the specification of the sacred

5 Texts on which the law rests.

The fundamental aspects of the laws of obligatory prayer and fasting

6 have long been known to the believers and applied by them in varying degrees
depending upon their awareness of their importance. The details

7 which remained to be applied universally were quite secondary in relation to the vital
spiritual significance of the laws themselves. it was with this

in mind that the announcement made by the house of justice did not go

8 into such matters as the verses of the kitáb-i-Aqdas and the questions and

9 Answers in which these details can be found. it wishes the friends to register

10 in their understanding the basic concepts of these laws and the importance of
observing them. Then, as individuals study the Texts, they will undoubtedly

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326 707edly have questions which can be answered as they arise. in due course the

327 house of justice will provide National Spiritual Assemblies with references

328 which they can use in replying to such questions.

329 you will note that the course followed in the universal application of the
 330 law of buqúqu'lláh was different to the above. in that case the house of
 331 justice circulated a compilation of the texts concerning buqúqu'lláh and a
 332 codification of the law for the believers to study and then, because a date
 333 of application was necessary, announced a specific date from which the law
 334 would be applied to all believers. Since that time, although the deputies
 335 and representatives of the Trustee of buqúqu'lláh have been actively pur-
 336 suing the education of the friends in this law, they have been instructed not to
 attempt to give detailed answers to questions of computation, since this is something which
 the house of justice has preferred to leave to the discre-
 337 tion of the individual believers as they themselves study the texts of the law and
 strive to apply it.

338 This approach to the application of laws into a community's life is clearly
 339 very different from the one you outline as being the norm in civil society,
 340 but the house of justice feels that you will understand, at least in the case of
 341 these laws of conscience, why special approaches are desirable in order not
 342 to obscure the essentials of the laws by paying too much attention to detail in the
 initial stages.

343 There is, moreover, an aspect of bahá'í law at the present time which dif-
 344 fers from most civil laws, namely, that genuine ignorance of a law is accept-able as an
 excuse for not adhering to it. This makes possible the education
 345 of the bahá'ís as laws are applied and also allows new believers time to ac-
 346 custom themselves to the principles and laws of the faith. it is an important
 347 factor in the evolution of bahá'í communities, institutions and individuals,
 348 whether observance is solely a matter of personal conscience, as in the case of the
 laws of prayer and fasting, or is enforceable by the institutions of the
 349 cause as are the laws of marriage.

350 undoubtedly, as the structure of bahá'í law evolves, the universal house
 351 of justice will have to consider some general form or procedure for formal-
 352 izing the application of laws and this may well include publication in a specified
 bulletin, as you indicate is the procedure in relation to civil law in certain countries.

353 with loving bahá'í greetings,

Department of the Secretariat 324.4

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325 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

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Registration of Bahá'í Marriages in Iran

[signed: The Universal House of Justice]